SUMMARY OF FUNDING 2021/22

Organisation Name: 10017505 Co Ltd **UKPRN:** 10017505

Master Contract Number: ESFA-505

	Allocation			
	Contract Ref	**Aug 21 - Mar 22**	**Apr 22 - Jul 22**	**2021/22 Total**
16 to 18 Traineeships	16TR-505	£26,803	£14,127	£40,930
16 to 19 Education	16ED-23728	£95,301	£32,791	£128,092
			Total Funding for this contract:	**£169,022**

Date: Tuesday, March 29, 2022 11:05 AM

SCHEDULE 1: SPECIFICATION & MONITORING

16-19 EDUCATION SPECIFICATION

Definitions

"16-19 Education Financial Support for Students Advice"	Means 16 to 19 education: financial support for students - GOV.UK (www.gov.uk)
"16-19 Education ILR Funding Returns Guidance"	Means Funding guidance for young people: ILR funding returns - GOV.UK (www.gov.uk)
"16-19 Education: Funding Allocations Supporting Documents"	Means 16 to 19 education: funding allocations - GOV.UK (www.gov.uk) 16 to 19 funding allocations supporting documents for 2021 to 2022 - GOV.UK (www.gov.uk)
"16-19 Education: Funding Guidance"	Means 16 to 19 education: funding guidance - GOV.UK (www.gov.uk)
"16-19 Student Support Funding Guidance"	Means 16 to 19 Bursary Fund guide 2021 to 2022 academic year - GOV.UK (www.gov.uk) Free meals in further education funded institutions: guide for the 2021 to 2022 academic year - GOV.UK (www.gov.uk) Residential Bursary Fund: Guide for the 2021 to 2022 academic year - GOV.UK (www.gov.uk) Residential Support Scheme 2021 to 2022 academic year - GOV.UK (www.gov.uk)
"16-19 Tuition Fund"	Means funding provided to support small group tuition for 16 to 19 students in English, maths and other courses where learning has been disrupted.

“16-19 Tuition Fund Guidance”	Means 16 to 19 funding: 16 to 19 tuition fund - GOV.UK (www.gov.uk)
“Capacity and Delivery Funding” (“CDF”)	Means specific funding provided to post-16 providers to build capacity and capability to deliver substantive T Level-style placements ahead of the roll-out of T Levels.
"Careers Guidance: for further education colleges and sixth form colleges"	Means Careers guidance for colleges - GOV.UK (www.gov.uk)
“Centres for Excellence in Maths Programme”	Means specific post-16 providers that receive funding for trialling new teaching approaches, building teachers’ skills and networking, to improve maths teaching for 16-19-year-olds studying towards GCSE or Functional Skills in the FE sector.
“Centres for Excellence in Maths Funding Guidance”	Means Centres for Excellence in Maths programme funding conditions - GOV.UK (www.gov.uk)
“Education, Health and Care Plan”	Means a support plan as defined in section 37(2) of the Children and Families Act 2014 (legislation.gov.uk)
“Employer Support Fund Pilot Guidance”	Means Employer support fund pilot - GOV.UK (www.gov.uk)
“Full-time enrolment for 14-16 year olds in further education and sixth form colleges”	Means Full-time enrolment of 14 to 16 year olds in further education and sixth-form colleges - GOV.UK (www.gov.uk)
“Funding Rates and Formula Guidance”	Means Funding rates and formula - GOV.UK (www.gov.uk)
“Funding	Means Funding Guidance for Young People 2021 to

Regulations"	2022 Advice: funding regulations for post-16 provision - GOV.UK (www.gov.uk)
"Guidance for Completing the Industry Placement Capacity and Delivery Fund (CDF) Monitoring Form"	Means Applying for and delivering industry placements: Capacity and Delivery Fund (CDF) for the 2021 to 2022 academic year - GOV.UK (www.gov.uk)
"High Needs Funding Guidance"	Means High needs funding arrangements: 2021 to 2022 - GOV.UK (www.gov.uk)
"How T Levels are Funded"	Means How T Levels are funded - GOV.UK (www.gov.uk)
"Industry Placement Guidance"	Means CDF guidance for those who are delivering in 2020 to 2021, and will continue placement hours into Funding Year 2021 to 2022: Industry placements: capacity and delivery fund (CDF) for providers delivering in 2020 to 2021 academic year - GOV.UK (www.gov.uk) CDF guidance for those who are delivering in 2021 to 2022: Industry placements: capacity and delivery fund (CDF) for providers delivering in the 2021 to 2022 academic year - GOV.UK (www.gov.uk)
"Maths and English Condition of Funding Guidance" and "Condition of Funding"	Means 16 to 19 funding: maths and English condition of funding - GOV.UK (www.gov.uk)
"Qualifications"	Means the Department's List of Qualifications approved for funding 14-19 Overview - ESFA List of Qualifications approved for funding (education.gov.uk)

"Qualifying Learner"	Means a Learner enrolled on a full-time level 2 or level 3 vocational and technical programme as set out in the current Capacity and Delivery Fund guidance at: Applying for and delivering industry placements: Capacity and Delivery Fund (CDF) for the 2021 to 2022 academic year - GOV.UK (www.gov.uk)
"SEND Code of Practice"	Means SEND code of practice: 0 to 25 years - GOV.UK (www.gov.uk)
"Student Bursary Support Service (SBSS)"	Means Student Bursary Support Service (education.gov.uk)
"Study Programme"	Means a Learning Programme designed for an individual Learner aimed at supporting their development and progression in line with their aspirations for sustainable paid work, further or higher education, an Apprenticeship or a traineeship. For the purposes of this Agreement, it also means a T Level. 16 to 19 study programmes: guide for providers - GOV.UK (www.gov.uk)
"Sub-Contracting Controls"	Means Funding guidance for young people: subcontracting controls - GOV.UK (www.gov.uk)
"T Level"	Means a Level 3 programme of education, known as a T Level, which has been approved by the Institute for Apprenticeships and Technical Education under sections A2DA and A2DB of the Apprenticeships Skills, Children and Learning Act 2009.
"T Level Industry Placements Delivery Guidance"	Means T Level industry placements delivery guidance - GOV.UK (www.gov.uk)
"T Level Industry Placement Employer Incentive Fund"	Means Employer incentive payments for employers offering a T Level industry placement - GOV.UK (www.gov.uk)

"T Level Industry Placement Employer Incentive Funding Rules"	Means T Level Industry Placements Employer Incentive Fund (publishing.service.gov.uk)
"Teachers' Pension Scheme Increased Employer Contributions"	Means Teachers' pension scheme employer contribution grant: further education providers - GOV.UK (www.gov.uk)
"Traineeships Funding Guidance"	Means ESFA funded 16 to 18 traineeships - GOV.UK (www.gov.uk)

Summary of Services

1. The Services are the delivery of Study Programmes and support for all 16 to 19-year-olds, including 16-18 traineeships, and for High Needs Learners aged 16 to 25.

2. The Services are for any Learner aged 16 to 19 and High Needs Learners (other than apprentices) in a relevant Institution or Independent Learning Provider.

3. The Services include support to help Learners overcome specific barriers to participation so they can remain in education.

4. The High Needs element of the funding system supports provision for children and young people with special educational needs and disabilities (SEND) from their early years until they reach the age of 25, enabling both local authorities and institutions to meet their statutory duties under the Children and Families Act 2014 (legislation.gov.uk).

5. In providing 16-19 Education, the College is required to meet the Maths and English Condition of Funding in 2021 to 2022, except in relation to those Learners enrolled in a Study Programme that is a T Level (see 19.c below).

6. The legal bases for these Services are Section 14 Education Act 2002 and section 100(1B) of the Apprenticeships, Skills Children and Learning Act 2009.

7. The documents listed in the Definitions of this Schedule are those documents produced by the Department which constitute the Funding Rules for these Services.

Services Commencement and Duration

8. 16-19 Education Services Start Date: 1st August 2021

9. 16-19 Education Services Expiry Date: 31st October 2022 (final data submission).

Service Requirements

Recruitment

10. The College shall recruit eligible Learners onto these Services from the Services Start Date. New Learners must not be recruited after 31st July 2022.

11. The recruitment must comply with the 16-19 Education Funding Regulations.

12. All Learners must be enrolled on a Study Programme.

13. 16-19 Education covers the following groups of young people who are:

    a. Aged 16 to 19;

    b. Aged 19 to 24 and have an Education, Health and Care Plan; or

    c. Aged 14 to 16 and meet the criteria set out in Full-time enrolment for 14-16 year-olds in further education and sixth form colleges.

Outputs

14. The College will deliver an eligible Study Programme as set out in the Funding Regulations for the Funding Year.

15. The College will take steps to ensure as many Learners as possible achieve their Study Programmes. The Department will monitor the achievement rate as part of an overall risk assessment.

16. The College will take steps to ensure they spend the allocated Funding in the Funding Year.

17. The College will maintain evidence of the delivery of the Services as set out in the Funding Regulations.

18. The College will deliver traineeships to the requirements set out in the Traineeships Funding Guidance.

19. As set out in the Maths & English Condition of Funding Guidance, the College must ensure Learners study maths and/or English as part of their Study Programme in each academic year where the Learners are:

a. aged 16 to 18 and 19 to 25 with an Education, Health and Care Plan who do not hold a GCSE grade 9 to 4, A* to C (a standard pass grade) or an equivalent qualification in these subjects; and

b. doing a programme of 150 hours or more, which started on or after 1 August 2014;

c. where the Learner is enrolled in a T Level, the College must comply with the requirements in relation to maths and English set out in How T Levels are Funded.

20. The College will support eligible Learners to take part in their Study Programme through the provision of bursary funding, including for free meals and accommodation as set out in the 16-19 Student Support Funding Guidance and 16-19 Education Financial Support for Students Advice.

    a. 16 to 19 Bursary Fund – provision of financial support to help Learners overcome specific barriers to participation so they can remain in education. This can be either through the bursary for defined vulnerable groups or through the discretionary bursary;

    b. Free meals in further education – the provision of free meals to eligible Learners;

    c. Residential Bursary Fund – provision of support towards accommodation costs for eligible Learners participating in a designated specialist subject area, e.g. land-based Study Programmes, which it is too far to travel to each day; and

    d. Residential Support Scheme – provision of support towards accommodation costs for eligible Learners who cannot access the same or similar substantial Level 2 or Level 3 Qualification within a reasonable daily travelling distance.

21. Where the financial support is for a bursary for an eligible Learner in a defined vulnerable group, the College must access such support for the eligible Learner from the Student Bursary Support Service (SBSS), as set out in the 16-19 Student Support Guidance and 16-19 Education Financial Support for Students Advice.

22. The College will support eligible High Needs Learners via High Needs Funding as set out in the High Needs Funding Guidance and SEND Code of Practice. This supports Services for Learners with special educational needs and disabilities (SEND) until they turn 25 (if they have an Education Health and Care Plan in place).

23. Where the College is engaged in the delivery of activity funded through the 16-19 Tuition Fund, the College must comply with the requirements set out in the 16-19 Tuition Fund Guidance.

24. Where the College is engaged in the delivery of Employer Support Fund Pilot, the College must comply with the requirements set out in Employer Support Fund Pilot Guidance.

25. Where the College is engaged in the delivery of T Levels, the College must:

a. comply with the requirements set out in How T Levels are Funded;

b. comply with the requirements set out in the T Level Industry Placements Delivery Guidance;

c. comply with visits from the Department, its agent or any other body with whom the Department makes arrangements, for the purposes of monitoring the compliance with the T Level Industry Placements Delivery Guidance; and

d. have due regard to the skills analysis and priorities of the local Skills Advisory Panel when planning future expansion of T level provision.

26. Where the College is engaged in the delivery of T Levels and responsible for the administration of the T Level Industry Placement Employer Incentive Fund between May 2021 and July 2022, the College must comply with the guidelines set out in the T Level Industry Placement Employer Incentive Funding Rules.

27. Where the College is engaged in delivery of the Centres for Excellence in Maths Programme, the College must comply with the requirements set out in the Centres for Excellence in Maths Funding Guidance.

28. Where eligible, the College will receive a grant for Teachers' Pension Scheme Increased Employer Contributions, this is additional funding to support increased employer pension contributions for this Funding Year.

29. In addition to the obligations set out in Clause 30, Assignment and Sub-Contracting, the College will adhere to the requirements set out in the Sub-Contracting Controls.

30. The College will provide careers advice to Learners in line with Careers Guidance: for further education colleges and sixth form colleges.

31. The College will deliver the Services in a way that ensures:

a. Value for money;

b. The protection of public funds;

c. The effective delivery of a high-quality service for Learners appropriate to their needs; and

d. Meets the public benefit test.

<u>16-19 Education Delivery Administration</u>

32. Where the Services are delivered by the College and continued from the 2020 to 2021 Funding Year, the College must migrate data for continuing Learners from the 2020 to 2021 ILR to the 2021 to 2022 ILR in the first ILR Data return for 2021 to 2022, as set out in Appendix B of the ILR specification.

33. The College will submit Learner data to the Department to comply with

Clause 21, Submission of Learner Data. This will include a data submission for bursary funding, as set out in the 16-19 Student Support Funding Guidance.

34. The College must complete the Learner's Study Programme on or before the planned end date in the data submitted in the ILR. Where the College misses this date, the Department may consider this a Minor Breach of this Agreement.

35. The College shall submit funding claims in line with Schedule 1B, 16-19 Education Monitoring.

36. The College must keep the Department informed of any changes to their bank details.

The Department

37. The Department will pay for the Services as set out in Schedule 2, 16-19 Education Payments.

38. The Department will monitor the Services as set out in Schedule 1B, 16-19 Education Monitoring.

SCHEDULE 1B: MONITORING

16-19 EDUCATION MONITORING

Monitoring of ILR Submission for 16-19 Education Delivery

1. Colleges must ensure ILR submissions are made in accordance with 16-19 Education ILR Funding Returns Guidance.

2. The Department will monitor and review the data submitted under Clause 21, Submission of Learner Data of this Agreement for all in-year monitoring purposes.

3. This data is used to determine future funding allocations in accordance with 16-19 Education Allocations Supporting Documents.

4. Where data is incorrect in the final data submission of the academic year the Department will amend or determine future funding allocations to recover the payments associated with the incorrect data.

16-19 Education Performance Management

5. The Department may increase Funding for the College. The Department will award additional funding for exceptional in-year growth in line with the criteria set out in the Funding Rates and Formula Guidance.

16-19 Education Delivery Reconciliation

6. For grant funded provision, the Department will reconcile the outturn against the Funding paid. The College will submit a final claim to the timescales in the 16-19 Education ILR Funding Returns Guidance. Failure to submit a final claim to the published timescales will be a Serious Breach of this Agreement and any reconciliation will be at the Department's discretion.

7. The Department will perform a reconciliation at the end of the Funding Year as set out in the 16-19 Education ILR Funding Returns Guidance and will notify the College of the actual number of Learners delivered to and the value of the Study Programmes delivered and compare this to the total Funding paid under this Agreement as specified in Schedule 2, 16-19 Education Payments. Where the Department determines, as a result of such review, that there has been an over-payment to the College, the Department may recover in full from the College the amount or value of all such errors and such sum shall be repayable by the College to the Department within 30 days of receiving an invoice for the same.

Industry Placement: Capacity and Delivery Fund

8. Where the College is in receipt of Capacity and Delivery Funding, the College will submit termly monitoring reports as set out in the Guidance for Completing the Industry Placement Capacity and Delivery Fund Monitoring Form. The Department may withdraw the 2021 to 2022 Capacity and Delivery Fund allocation and recover Funding paid if the monitoring form is not completed and not submitted to the requirements set out in the guidance.

9. Where the College is in receipt of Capacity and Delivery Funding, the College will support eligible Qualifying Learners to complete an Industry Placement, in accordance with the requirements of the T Level Industry Placements Delivery Guidance so far as relevant.

10. Where the College is in receipt of Capacity and Delivery Funding and fails to deliver a minimum number of Industry placements equivalent to the percentage as defined in the Industry Placement Guidance of the number of Qualifying Learners on full time level 2 and/or level 3 vocational and technical programmes in 2021 to 2022 academic year with the allocated Capacity and Delivery Funding, the Department shall be entitled to

    a. reduce, suspend or recover, from the College a sum equal to the allocation for the number of Industry Placements not delivered; and/or

    b. give consideration to the failure to meet the minimum number of Industry Placements when finalising the amount of Funding to be provided in respect of the delivery of such Industry Placements in any subsequent Agreement between the Parties.

11. Where the College is in receipt of Capacity and Delivery Funding, if:

    a. the Department, in its sole discretion, considers that the outcome of the financial health assessment and/or the College's financial control arrangements is inadequate, or

    b. an Inspectorate has judged the Services delivered under this Agreement to be inadequate or not met,

    the Department may, in its absolute discretion, withhold any remaining profiled allocation payments of that fund, and may give consideration of any such matter when finalising the amount of Funding to be provided in respect of the delivery of such Industry Placements in any subsequent Agreement between the Parties.